

The motion is DENIED as MOOT as to paragraph 99, given the concurrent ruling sustaining the demurrer to the third cause of action.

To seek injunctive relief, a plaintiff must plead: (i) a tort or other wrongful acts; and (ii) grounds for equitable relief of this kind (i.e., inadequacy of remedy at law). (*Connerly v. Schwartzeneger* (2007) 146 Cal.App.4th 739, 748-749.)

Here, the Complaint alleges no facts supporting equitable relief.

As such, the motion is GRANTED as to the Prayer for Relief at paragraph 169.

Miscellaneous Allegations

Defendant also moves to strike allegations in paragraphs 3, 4, 21, 22, 23, 32, 47, 48, 56, 57, 58, 63, 86, 123, 149, 157, 156, and 166 of the Complaint.

This request constitutes an improper procedural line-item veto. (See *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.)

As such, the motion is DENIED as to these miscellaneous requests.

Should Plaintiffs desire to file an amended complaint that addresses the issues in these ruling, Plaintiffs shall file and serve the amended complaint within 15 days of service of the notice of ruling.

If no amended complaint is timely filed and served, Defendant SHALL file an answer to the remaining portions of the Complaint within 30 days thereafter (i.e., after the due date for the amended pleading).

Defendant to give notice.

19	Aranda vs. Paje Optometric, APC	<u>Motion for Summary Judgment and/or Adjudication</u> The court DENIES Defendant PAJE OPTOMETRIC, APC, d/b/a ADVANCED OPTOMETRY OF MISSION VIEJO's motion for summary judgment on the Complaint by Plaintiff LAURA ARANDA. The court GRANTS in part, and DENIES in part, the alternative motion for summary adjudication. Specifically, the court GRANTS the motion as to the eighth cause of action (interference with CFRA rights), the ninth cause of action (retaliation for exercising CFRA rights), and as to Plaintiff's claim for punitive damages. Summary adjudication is DENIED as to the first, second, third, fourth, fifth, sixth, seventh, tenth, eleventh, twelfth, and thirteenth causes of action of the Complaint. The Complaint asserts the following causes of action against Defendant, the only specifically named defendant: 1. Sex/Gender/Pregnancy Discrimination in Violation of the FEHA; 2. Disability Discrimination in Violation of the FEHA; 3. Retaliation in Violation of the FEHA; 4. Failure to Investigate and Prevent Discrimination and Retaliation in Violation of the FEHA; 5. Failure to Provide Reasonable Accommodations in Violation of the FEHA; 6. Failure to Engage in a Good Faith Interactive Process in Violation of the FEHA; 7. Violation of California Pregnancy Disability Leave Law; 8. Interference with CFRA rights; 9. Retaliation for Exercising CFRA Rights; 10. Failure to Provide Rest Periods; 11. Failure to Provide Meal Periods; 12. Unfair Business Practice in Violation of Cal. Lab. Code § 17200; and 13. Wrongful Termination in Violation of Public Policy. <u>Burden of Production in Employment Law Cases</u>
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